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P.N. Haksar Papers

(I-II Installments)

Subject File #24

Record of talks between P.M. and
Premier Chou En Lai held on 24th
April, 1960, from 10.30 a.m. to
1.45 p.m.

P.M. Yesterday we had a long ^{talk} time about the western sector and you gave me in some detail your version of the case. I would like to say something in reply briefly. But this means an interminable argument; but I would like to have your views on one particular thing of factual nature.

You told me that it was not till the end of 1950 that the Peoples' Liberation Army came from Sinkiang to northern Aksaichin area - I presume, by the old caravan route, and it was only about a few years later (4 or 5) that the Chinese authorities built a road there. I would like to know whether this is correct.

PREMIER CHOU: I said that Aksaichin area always has been under the jurisdiction of Sinkiang and Sinkiang became formally a part of China some 200 years ago. Therefore, being a part of Sinkiang it has been under our administration for 200 years. As I mentioned earlier, we had surveys conducted in this area twice - one in 1891 and another in ¹⁹⁴¹ 1961. In both the cases the surveyors went upto the Korakoram range and right upto the Konkala pass in the area. This shows that Aksaichin and other areas were surveyed by us and we have many historical documents to prove this.

At the end of 1947, Sinkiang was liberated and in 1951, the PLA reached southern Sinkiang and also Aksaichin. They also went through this area to the Ari region of Tibet. Since then our administrative personnel and patrols have been stationed in this area. As I pointed out yesterday, some parts of the area are uninhabited and it is impossible to station people there throughout the year. But ever since 1950 our personnel and supplies pass ^Sthrough this area from Sinkiang to Tibet and it became an important route joining Sinkiang with Tibet. In 1956-57 we built

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a highway facilitating transport of men and material from Sinkiang to Tibet. This area was, therefore, administered by both the old and the new Chinas.

The statement, therefore, of your Excellency and the Government of India that we reached this area only in the last year or two ^{year or two} ~~was~~ in the last few years is not in consonance with facts.

P.M. Aksaichin area is a wide area and it is only the eastern tip of the area where you have built the high way. But long after the high way was built, according to us ^{there were} /no Chinese or Tibetans ⁱⁿ and other parts of Aksaichin area because on a number of occasions we had full reports on these parts and it was only last year (1959) that certain posts were established by the Chinese in this remaining part of Aksaichin and many roads were also reported to have been built. Thus, according to us, apart from the high way part, the other part was traversed and occupied only a year or a year and a half ago. Some other areas of Tibet which were not parts of Aksaichin were also occupied by China last year. Therefore, I would like to know from Your Excellency about what period of time the parts to the west and south of the high way in Aksaichin area were occupied by the Chinese?

PREMIER CHOU: Your Excellency has put the question in such a way that it itself becomes a question (a controversial matter).

As I have said, areas to the north and east of Korakoram watershed belong to Sinkiang and the boundary line starts from here, goes to Klongka pass, down to the south from the Chang Chen Mo valley, Pangong Lake and Indus Valley. Area east of this belongs to Tibet and Chinese administrative personnel and patrols have reached this area. This was true of both old China and new China.

The case is precisely the same as the eastern sector where India regards the line of actual control as her ⁷⁰ international boundary. As to when patrol parties of either country reached the line is an internal matter since the

patrols were sent according to need and we may send them earlier or later as the need arises. Your Excellency had said once that in the eastern sector some places are high mountains and are inaccessible. The case is ~~the~~ similar ^{on} ~~about~~ the western sector and we never sent patrols there.

In your letter your Excellency had mentioned that you sent your patrols to the eastern sector only in the last year or two, because no need arose before that. Similarly in the western sector in some areas there were no inhabitants and the place ^{has} ~~is~~ high mountains.

If your Excellency asks me when the Chinese patrol parties reached a particular point in the western sector, then I can also ask the same question about the eastern sector. This will mean only arguments; and this only goes to prove that there is a dispute both in the eastern as well as the western sectors.

Your Excellency said that in the eastern sector your administrative authority was only extended gradually. That is also our information. In the ^{Kammy} ~~Khaming~~ area in the eastern sector the Tibetan administration continued till 1951 when only it was withdrawn.

Therefore, we have disputes in both sectors and the boundary is not delimited. Hence the need for negotiations. Pending final settlement, we can both keep our viewpoints and seek a settlement through negotiations.

If you ask me the same question as to when we reached the border I may again ask you the same question and it will ~~only~~ mean ^e ~~und~~less arguments.

In the areas south of Kongka pass Indian administrative personnel and patrols even crossed the border line and they were also stationed there but we did not take any action and just informed the Government of India about it and wanted to negotiate because we realised ^{that a} ~~the~~ dispute existed here and that it could be dealt with when individual

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adjustments are made through mutual negotiations. This is also true of the eastern and the middle sector. I do not understand the purpose of your Excellency's asking me this question. I do not think it will yield any results.

P.M.

My purpose in asking this question was to make it clear as to what period of time the area west of Aksaichin came in practical possession of the Chinese Government. This obviously was not so before, since, as Premier Chou has himself said, the Chinese authorities came to Aksaichin area only at the end of 1950 and then later they built a road there and it must have been long after that.

May I ask whether ~~is~~^{is} it your contention that the Chinese or Tibetans were there in any form before ?

I am saying this particularly because we have so often been to areas west and south of the highway and we had so many pictures and photographs of this area, and we found that the change took place (in the area west of the highway) in a little more than a year. This is not from the point of view of theoretical position but practical one, and more especially because your Excellency has been stressing "actualities of the situation" and "status quo". Now what is the status quo ? Status quo of last year or the status quo of ^a few years more?

I mentioned about new roads being built at some distance to the west of Aksaichin highway and these must have been very recent structures.

PREMIER CHOU: I have already made clear the position of the Chinese Government i.e., that our boundary lies along the Korakaram watershed upto Kongka pass and then to the central sector. Area to the north and east of this is part of Chinese territory. This is so in history and also in administrative jurisdiction. Large parts of this area are in the jurisdiction of Sinkiang; some parts are in the jurisdiction of Tibet. Our administrative and revenue personnel have always functioned in this area. As regards

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the question as to when New China reached this place, obviously it can only be after New China was born. After the establishment of the Peoples Republic of China we sent our people to this area according to needs. If no need arose, and besides there being a friendly neighbour like India, there was no reason why we should send our people there. Our position in this area is like India's position in the eastern sector. India regards the line reached by her personnel as her boundary line. If we consider the time of the arrival of administrative personnel and patrol parties, then we find that during the British rule administrative personnel and patrols never reached the area south of the line which India considers to be its border in the eastern sector. It was only in 1941-42 that the British sent personnel but as soon as they reached the boundary line, the local Tibetan government raised the matter with the British Government. Even after independence of India, there was only gradual extension of administration to this area.

Therefore, in the eastern and the western sectors of the boundary, there exists a dispute of the same nature.

In the eastern sector, what we consider the boundary line, has been shown by Chinese maps and the Indian maps till 1936 have also accepted and shown the same alignment as shown by the Chinese maps. It was only changed to a formal and defined boundary in 1954.

In the western sector our maps have always shown the boundary which we consider to be our boundary and moreover this boundary was also shown by Indian maps till 1862. Some Indian maps later ^{used} ~~used~~ colour shade. In 1950, in addition to the colour shade, the Indian maps marked the boundary as "undefined". In 1954, however, the Indian maps changed it to "defined".

The boundary line for the eastern and western sector as shown on the Chinese maps is considered by the

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Chinese Government to be their boundary line. This has always been so and it is also shown that way in the Indian maps. It was not till 1954 that the Indian maps started showing a fixed boundary.

As regards maps, China perhaps has more bases on her side while India has more changes. And yet we say that we would like to have negotiations and then suggest the establishment of a joint boundary committee, and that pending a settlement both sides should keep to the area of each side.

In the eastern sector we acknowledge that what India considers its border has been reached by India's actual administration. But, similarly, we think that India should accept that ^{China's} ~~India~~ administrative personnel has reached the line which it considers to be her border ^(in the W Sector). On our part, we have not exceeded the line; but on the other hand, India has not only exceeded the line but has even stationed troops at ^{some} ~~such~~ places. This is what we mean by "status quo".

In the middle sector there is also dispute but the places of dispute are few. But these places together with the few places in the eastern or western sector can be considered when negotiations are held. This is the starting point. If we only argue about it and ask when China reached the boundary line, then we can ask the same question and it would only lead to endless argument and it would be impossible to solve the question and will only lead to more disputes. It would thus go against the common desire of both sides to settle the border dispute. It will also run counter to the purpose for which I have come here. Therefore, I suggest to your Excellency that this kind of argument should be stopped and we should talk something which will be helpful ~~for a settlement~~. Our desire is for friendship and we should lessen and not extend areas of dispute.

The situation is quite clear and time does not allow us to argue like this.

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P.M. I entirely agree about lessening the points of difference and find out ways for approaching a settlement. But what to do if facts ^{vary} ~~very~~ so much? Apart from facts there are also the inferences. I have stated a very firm case : that there was no control of Tibet or China in eastern Ladakh and that neither the Chinese, the Sinkianese or the Tibetans had every been there. Now that is in entire opposition to what your Excellency has said. What I meant was - the question is not only of dates ~~but~~ of visits by patrol parties, but, that for generations there has been no sign of Chinese or Tibetans in the eastern and southern parts of Ladakh. This is a basic thing; and, therefore, I venture to ask your Excellency as to when the patrol parties had visited these areas.

There is a big difference in our minds between jurisdiction of ~~the~~ ^a country and setting up of administrative offices. A country may have jurisdiction and yet may not have full administration because of the area being uninhabited or being mountainous. But that does not lessen the jurisdiction. Sending of troops is not an administrative matter but it is the exercise of jurisdiction. We have fully and cent per cent exercised our jurisdiction in the eastern sector for a long time but we spread our administration slowly because we were dealing with ~~primitive~~ tribes and they had to be ~~xxx~~ given training for it. Establishment of military check posts is easy, but that is not administration.

You referred to Indian maps upto 1862 being in line with the Chinese maps. 1862 means ~~about~~ 98 years ago. Actually, the first full survey on the ground of the boundary was made in 1864 by, I think, Johnson

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and it is the first elaborate survey of its type. In 1962, Strachy and Walker brought out a map without going there but Walker later changed his map after Johnson's survey. Therefore, atleast for nearly a hundred years they have not changed or varied. Perhaps some parts were shown in colour but that is only to show the difference in areas under actual administration and areas under our jurisdiction.

I entirely agree we cannot go on arguing about this endlessly.

Therefore, I thought that some facts can be clarified at the official level. The difficulty is of basic facts and inferences based on them are so different. You suggested the establishment of a joint committee but I am unable to understand what it can possibly do. The joint committee will necessarily consist of officials and the like and in such vital matters it cannot go far. If we two ourselves disagree how can a joint committee agree? It can only perhaps report on facts, but the facts are not ascertained by going to these places, to the peaks or check posts for they could give us no history and, therefore, it can be of no help at all. But officials from both sides may perhaps examine the documents and report to both the governments. Then atleast we will have some facts; but no joint committee would have either the authority or competence to deal with these matters.

PREMIER CHOU: Your Excellency's statement proves that my proposal on behalf of the Chinese Government is tenable. Your Excellency says that it is your firm believe that eastern Ladakh has always been under the jurisdiction of Ladakh. Similarly, on our part we firmly believe that in the eastern sector, areas south of the line have belonged to China. If necessary, we can produce many documents to prove this. 76 In the last few days we have talked mostly above the western sector, but if we were to talk about the eastern sector we will also need atleast three days more. But that will only

increase the difference. You mentioned about difference between jurisdiction and administration. According to the Government of India in the eastern sector jurisdiction had reached long ago but administration spread slowly. We can use the same explanation about the western sector also. The Chinese Government always considered and firmly believed that the boundary between Sinkiang and Ladakh is the one as appears on our maps, viz: following the Korakoram watershed to Kongka pass and then reaching the middle sector. Our sovereignty over this area had long reached this line. Although it took time for administration to reach the line, the jurisdiction has always been quite clear and we have documents to support.

As regards Aksaichin, most places are sparsely inhabited; but Aksaichin has been under the jurisdiction of Khotan for a long time. Our administration sometimes reached there, sometimes not. Mainly the Sinkianese who are nomads went there, but some times a few Tibetans also. Therefore, it ^{was} ~~is~~ only when pasturage was available our people could go and collect revenues and they returned when winter came. We have also documents to support this. Therefore, your principle can be used by both sides, yet I do not ask the Government of India to immediately agree to our stand and we would like you to do the same. Therefore, we have been maintaining that there is a dispute and that the boundary is not delimited.

As regards maps in eastern sector, our maps have not changed but Indian maps have changed. It was not till 1954, that is, 6 years after Indian independence, that India made this a formal frontier.

Similar situation obtained in the western sector. Your Excellency mentioned that in 1864 maps were changed. But we still find that even in that period Indian maps were very vague - there was no line & In 1950 also the border was still marked "undemarcated". It was only in

1954 that it came to be marked as "defined".

Therefore, both in the eastern and the western sectors the boundaries were made "defined" in 1954.

This would further show that India also acknowledges the fact that boundaries established in the western sector were not delimited. Your Excellency stated in Parliament that the boundary in the western sector was vague. Therefore, ^{it} there is need to reach agreement through friendly settlement.

I was glad to hear that your Excellency agrees that officials of both sides should continue to examine materials available with both sides. We have also the same desire and, therefore, after examination of documents eventually we will find some common points.

As regards on the spot surveys to be made by the Committee I said that it ^{may} be done only if necessary. The main duty of the committee would, of course, be to examine the material and report to respective governments.

I also propose that officials of both sides should make the report to their governments and then higher level talks should take place. Even if it may not be possible to reach a complete solution in these talks, we very much hope that we can reach atleast an agreement on principles and subsequent talks should be held later. I have come with the sincere desire to settle questions once for all but if it is not possible to do so now, I would still very much like to see that favourable conditions are created for future talks. Friendship between our two countries is important not only to our two peoples but also ^{to} the world at large.

We should leave the differences on facts to any organisation formed by diplomatic personnel (i.e., members of the Foreign Office) of both sides. Thus, our talks will lead to effective and positive results.

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P.M. I may mention here a point though rather irrelevant; since you have mentioned it, I might refer to it. Your Excellency has mentioned about our patrols going to Khinzemane. I have made enquiries on the point and I find that there were no armed patrols at all. It was only a group of Tibetan refugees who were coming in. I have one advantage over you and that is that I slightly know the area about which we are talking.

I agree that there is no use carrying on the controversial discussion because there is difference of facts. However, I may mention one thing. Apart from old maps and accounts, our new maps (not only the 1954 maps) have been ^{before} ~~published~~ ~~by~~ everybody, including the Chinese Government and we have drawn your attention to them ^{while} ~~without~~ protesting against your maps. As far as I can remember, at no time did the Chinese Government raise objection to our maps. Objection to our maps was raised only in the middle of the last year. I do not say that you have formally accepted our maps but you had raised no objection and this was in spite of the fact that these maps told precisely what our situation with respect to the western and the eastern sectors of the border was, and even when the map question was raised by us, your government did not raise any objection. All that you said was that you would consider your own maps when there is time to do so. Now that indicates that right from the establishment of the Peoples Government, it knew of our maps and our position and there could have been no doubt on this point, ^{while} ~~whether~~ right or wrong. Normally speaking, we would have expected you to tell us about it in case you objected to them and it is only in September, 1959 that you told us of your objection to our maps. Naturally, we were led to believe all through these years that broadly speaking our maps were acceptable to you except for minor border disputes. This was more or less confirmed in my mind, when Your Excellency spoke to me some four years ago about the eastern sector. Hence our sense of surprise and shock

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when later the Chinese Government rejected our maps completely.

PREMIER CHOU: Speaking of maps - the maps themselves only show the historical development. When New China was founded we had no time to study details of neighbouring boundaries and we could only use the old maps. We had no basis to change maps unilaterally. In our conduct with friendly neighbouring countries we took a very objective view and said that Chinese maps may have some differences with the objective situation. This only represented our friendly attitude and we, therefore, said that it is only after negotiations that all maps ^(conformities) should be changed. We made this statement to Burma and to India, as also to some socialist countries with whom we had the same difference in the alignment of maps.

When we discussed the eastern sector I thought that the dispute was only about the eastern sector and we were always willing to settle it though, of course, we could not recognise the McMahon line or the Simla Convention; but if a settlement was reached, naturally we would change our maps. This was our thinking and it was certainly friendly. We have followed old maps in the eastern and the western sectors as they were but the Indian maps have changed before and even after independence. In 1954, the maps changed the line from "undefined" to "defined" and unilaterally. How can we recognise such unilateral change?

Since 1954 we had a chance of talking about our border question in a friendly way, although it was without maps; but we mentioned the same principles with regard to the western sector.

In your letter of December, 1958, when the question of maps was raised it was only about the eastern sector. It was only in March 1959 that you mentioned old treaties - not only the Simla Convention but also the peace treaty

with Tibet, and, therefore, a question was raised about the McMahon line and the Simla Convention which we cannot ever accept, but also about the western sector. Hence our reply of September, 1959. The dispute between us was thus brought about and it extended in this way. Since the differences have been extended, we must try to solve them. We do not impose our maps on India and we would like India to do likewise.

If we must reach a settlement then both our maps will have to be changed accordingly. Broadly speaking, maybe after settlement, the Chinese maps will be changed, ^{none} but this will be done when China settles the boundary question. This has been our attitude and it is an attitude of friendly settlement and not of unilaterally imposing our position on the other side. Your Excellency has known me for the last five or six years and you have known that I have consistently tried to settle questions in a friendly manner and I have ^{the} same attitude now.

P.M. May I say that it has been a privilege to know Your Excellency for several years and I attach value to this friendship not only from personal point of view but in a larger sense as representatives of two countries and it is our earnest desire both from the personal as well as larger point of view to settle these disputes.

But as it appears from the talks there is such basic difference regarding facts and recent developments that big hurdles have arisen. How can ^{we} you get over them? It is not a matter of one individual getting over them because these are national issues affecting vast numbers of people. As a matter of fact, even the slightest change in the border, according to our Constitution, can be made only by a change of the Constitution. As Your Excellency is aware, we recently had an agreement with Pakistan on some areas on the border and the Supreme Court

has decided that we can do so only if the Constitution is changed.

But here we have been trying to find a solution in a friendly way to our questions consistent with dignity and self-respect of both countries. The question is how to do this ? We must give it some thought.

It is true, as your Excellency has said, it is very unlikely and difficult for us to find a way of settlement on this occasion. Your Excellency has suggested this joint committee and you have also mentioned some matters called "common grounds". Among the common grounds you have mentioned, firstly, that a dispute exists, ~~Yes~~. Secondly, there is a line of actual control; thirdly, that there are geographical principles like watershed, valleys, mountain passes, which would equally apply to all sectors; fourthly, that each side should keep to its line and that no side should put forward any territorial claims; Fifth point is about national feelings.

Regarding these points ^{I would not say much in detail} ~~there is not much to be said~~ except ^{on} ~~for~~ No. 4 wherein you have said that neither side should put forward territorial claims. This is not quite clear to me. Our accepting things as they are would mean that basically there is no dispute and the question ends there, ~~and~~ that we are unable to do.

I had mentioned earlier that we are agreeable to officers on both sides continuing their examination of materials and then report^{ing} to us on the facts so that we could at least have precise facts. These officers, of course, are not competent to recommend a solution or take any major decisions. They also could not go to particular areas. They could not very well take any evidence from a shepherd and it is no use sitting on a mountain peak. It would not be helpful; ⁱⁿ Moreover, ⁸² partly because the situation has also been changing recently. If you think that there is something in this

then some of our officers may sit down and tell us how to proceed. They could draft something as to how the officials on both sides ^{would} ~~will~~ examine the documents and ~~they will~~ report to us.

PREMIER CHOU: I would like to have one clarification. After our officials ^{draft} ~~chart~~ a programme for ~~the~~ work or ways in which they will work, they will require some time and that cannot be done now. But after their work is finished they can submit their reports.

P.M. Yes, of course.

PREMIER CHOU: What about 4 o'clock this afternoon ?

P.M. That should be all right.

PREMIER CHOU: Who will head the team on your side ?

P.M. Our Foreign Secretary, Mr Dutt.

(It was then decided that senior officers of both sides should meet at 4 p.m.)

PREMIER CHOU: I am very glad to know that your Excellency has no objection to the common grounds mentioned by me. As regards point No. 4, our idea, when we say territorial claims should not be made, is that there should be no pre-requisites. Neither side should be asked to give up its stand, but after an agreement is reached the maps will have to be changed and each side will have to take necessary constitutional procedures. In our case, agreement has to be ratified by the National Peoples Congress; in your case, as in the case of Burma, the Constitution may have to be changed.

I would like to make a further proposal. In order to facilitate further negotiations after talks this time, it seems to us that a joint ~~statement~~ will be a good thing to indicate that some progress has been made in these talks. In this joint statement we may mention the following :

- (1) that both sides stated their stands and viewpoints and these talks have meant a step forward to settlement of the boundary
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question.

(ii) We still think that it is best to separate our forces from the line of actual control.

^{have any difficulty}
If you ~~disagree~~ in accepting this, we can think of some other way.

In the joint statement we should also express our desire for friendly relations. Not only our two people but the whole world is interested in these talks and, therefore, a statement would seem necessary.

We should try to lessen tension and eventually tension will be lessened.

P.M. I agree some kind of statement will have to be issued, but it will require careful consideration.

About separation of troops from the border, you would remember what we ~~have~~ said when you first wrote to us about it. We are also anxious to avoid clashes but as far as the eastern sector is concerned, there does not seem to be any chance. There may be a few Tibetan refugees coming in, but then our troops are not in contact at any point.

On the western sector there are vast areas with a few check posts here and there and it is not even easy to determine lines. All we can, therefore, do is to impress on our people not to do anything leading to clashes.

PREMIER CHOU: As regards the last point both sides should ensure that they continue to stop patrolling of borders not only in the western sector but also in the eastern sector because our posts are near, as at Kinzema. If there are no patrols, we can avoid contact and even if Tibetan refugees come and go, if we stop patrolling, then we can avoid clashes.

P.M. Yes. On the eastern sector there should be no difficulty. On the western sector we want to avoid

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possibility of conflict, but the answer to it is no patrolling at all, but that patrolling should not be done in a direction where conflict may arise.

PREMIER CHOU: I am afraid this interpretation of stopping patrolling might create some trouble, but I will reply tomorrow on this.

After our officials have examined documents and submitted reports to the respective governments, I would like to suggest that next talks should be held in China - Peking. In my letter also I had stated that we would extend to Your Excellency a very warm welcome and hospitality and I would like to extend this invitation today. If there is any difficulty about it, you can decide about it later. There is no need to give me a reply right now. You may visit at any time suitable to you.

P.M. Thank you; but this we will consider only after the committee has submitted its report.

(The meeting was then adjourned till next 10 o'clock on 25th April, 1960).

V.V.Paranjpe

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